

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                           |                                     |                                                       |                                    |                                 |
|--------------------------------------------------|-------------------------------------------|-------------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Jeffrey Tsui                    | Team:<br>Squad #15                        | CCRB Case #:<br>202203084           | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                           |                                     | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 05/14/2022 5:10 PM | Location of Incident:<br>423 Lenox Avenue | 18 Mo. SOL<br>11/14/2023            | Precinct:<br>32                                       |                                    |                                 |
| Date/Time CV Reported<br>Sat, 05/14/2022 7:53 PM | CV Reported At:<br>CCRB                   | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Sat, 05/14/2022 7:53 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. LT Michael Bletcher | 00000  | 929740 | 032 PCT |
| 2. PO Edgard Guido     | 12015  | 969103 | 032 PCT |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name    |
|-------------------------|-----------|--------|-------------|
| 1. PO Md Zinali         | 09219     | 970956 | 032 PCT     |
| 2. SGT Jonathan Taveras | 05450     | 953469 | INT FIO PRG |

| Officer(s)              | Allegation                                                                    | Inv. Div. Recommendation             |
|-------------------------|-------------------------------------------------------------------------------|--------------------------------------|
| A . LT Michael Bletcher | Abuse: Lieutenant Michael Bletcher stopped § 87(2)(b)                         | A . Within NYPD Guidelines           |
| B . PO Edgard Guido     | Abuse: Police Officer Edgard Guido searched § 87(2)(b)                        | B . Miscellaneous - Subject Resigned |
| C . PO Edgard Guido     | Abuse: Police Officer Edgard Guido abused authority in relation to § 87(2)(b) | C . Miscellaneous - Subject Resigned |

### Case Summary

On May 14, 2022, § 87(2)(b) filed this complaint with the CCRB online.

On May 14 2022, at approximately 5:10 PM, Lieutenant Michael Bletcher, Police Officer Edgard Guido, Police Officer Md Zinali, Police Officer Jose Gerez, and other officers of the 32<sup>nd</sup> Precinct arrived at 423 Lenox Avenue in Manhattan in their patrol vehicle. LT Bletcher instructed PO Guido, PO Zinali and PO Gerez to stop § 87(2)(b) who stood at the door of the grocery store located at the incident location (**Allegation A: Abuse of Authority, within NYPD guidelines**). PO Guido applied handcuffs on § 87(2)(b) PO Guido searched § 87(2)(b)'s pockets and frisk his torso and legs (**Allegation B: Abuse of Authority, miscellaneous - subject resigned**). PO Guido placed § 87(2)(b) inside a patrol vehicle for approximately thirty-minutes (**Allegation C: Abuse of Authority, miscellaneous - subject resigned**). LT Bletcher and officers explained to § 87(2)(b) the reason he was stopped. PO Gerez offered § 87(2)(b) his business card. § 87(2)(b) refused. He was released after no weapons were found and he left the location.

The investigation received BWC video footage for PO Gerez, PO Guido, PO Zinali, PO Kasza, PO McDermott, PO Arena, LT Bletcher, PO Infanzon, PO Gorin, and PO Harry. The videos are attached to IA #35 (BR14).

### Findings and Recommendations

#### **Allegation (A) Abuse of Authority: Lieutenant Michael Bletcher stopped § 87(2)(b)**

§ 87(2)(b) stated (**BR1**) that he rode his electric bicycle to the location and stood in front of a grocery store and talked with friends for approximately fifteen minutes. PO Guido, PO Zinali and PO Gerez walked over to § 87(2)(b) and grabbed him by the arms. PO Guido told § 87(2)(b) “Don’t move.” § 87(2)(b) asked PO Guido “What happened?” PO Guido replied, “Don’t move, just put your hands behind your back.” § 87(2)(b) complied, and PO Guido grabbed his bicep and wrist, and turned § 87(2)(b)'s body around. PO Guido applied handcuffs on § 87(2)(b) At this time, additional patrol vehicles arrived in front of the grocery store.

Sergeant Jonathan Taveras of the 67<sup>th</sup> Precinct stated (**BR5**) that he received information known to the CCRB and immediately called the 32<sup>nd</sup> Precinct station house. The officer on the line provided SGT Taveras with LT Bletcher’s phone number. SGT Taveras called LT Bletcher and provided him with the information known to the CCRB.

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PO Guido stated that prior to arriving at 423 Lenox Avenue in Manhattan, he responded to a job regarding a § 87(2)(b). LT Bletcher responded to PO Guido’s location to sign off on his memo book. LT Bletcher asked PO Guido to come with him and to assist with an assignment. LT Bletcher told PO Guido that SGT Taveras provided information known to the CCRB. LT Bletcher drove PO Guido, PO Zinali, and PO Gerez to the location. The officers observed § 87(2)(b) in front of 423 Lenox Avenue. LT Bletcher instructed PO Guido, PO Zinali, and PO Gerez to conduct a stop on § 87(2)(b) PO Guido, PO Zinali, and PO Gerez exited the vehicle and approached § 87(2)(b) PO Guido stated that § 87(2)(b) appeared to mount on the electric bicycle. PO Guido felt that § 87(2)(b) was attempting to flee the location. PO Guido instructed § 87(2)(b) to stop, and he did. PO Guido grabbed § 87(2)(b)'s right arm. PO Gerez and PO Zinali grabbed § 87(2)(b)'s left arm. PO Guido instructed § 87(2)(b) to turn his body around, and he did. PO Guido applied handcuffs on § 87(2)(b) During PO Guido’s CCRB interview, he stated that due to the serious nature of the information known to the CCRB, he restrained § 87(2)(b) for his and the other officers’ safety.

PO Zinali stated (**BR3**) that LT Bletcher drove him, PO Gerez, and PO Guido to the location. PO Zinali stated that he did not recall what the job was about. When the officers arrived at the location, they observed § 87(2)(b) standing in front of a grocery store. PO Zinali did not recall if he observed any bulges on § 87(2)(b) nor if there were any indication that § 87(2)(b) was in possession of a firearm or a weapon. There were approximately two to three bystanders nearby. PO Zinali exited the vehicle with PO Guido, and PO Gerez. The officers approached § 87(2)(b) PO Zinali held § 87(2)(b) by the left arm and PO Guido placed him in handcuffs.

According to PO Guido's BWC video (**BR6**), at timestamp 0:10, PO Guido exits the patrol vehicle around the building that housed 423 Lenox Avenue. At timestamp 1:10, PO Guido approaches § 87(2)(b) who was wearing a black sweater, black sweatpants, and smoked a cigarette next to an electric bicycle in front of 423 Lenox Avenue. At timestamp 1:11, PO Guido grabs and holds § 87(2)(b)'s right arm while PO Gerez grabs and holds § 87(2)(b)'s left arm. PO Guido tells § 87(2)(b) "Do me a favor, put your hands behind your back." At timestamp 1:20, PO Guido applies handcuffs on § 87(2)(b).

According to NYPD Patrol Guide Section 212-11 (**BR10**), officers may stop an individual when a police officer "has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor." It further elaborates that reasonable suspicion "exists when the information known to the member of service would make an ordinarily prudent and cautious police officer under the circumstances believe that a felony or Penal Law misdemeanor has been, is being or is about to be committed. The officer must have a particularized and objective basis for suspecting the person stopped of the criminal conduct. The officer must be able to articulate specific facts establishing justification for the stop; hunches or gut feeling are not sufficient."

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It is therefore recommended that **Allegation A** be closed as *within NYPD guidelines*.

**Allegation (B) Abuse of Authority: Police Officer Edgard Guido searched § 87(2)(b)**

§ 87(2)(b) stated (**BR1**) that after he was placed in handcuffs, PO Guido asked him to spread his legs, and he did. PO Guido searched both of § 87(2)(b)'s sweatpants pockets and removed his cellphone, keys, and cash. PO Guido patted § 87(2)(b)'s arms, and then his armpit area. PO Guido patted the inner area of § 87(2)(b)'s legs from top to bottom. PO Guido's hands made physical contact with § 87(2)(b)'s genitals "a couple of times" over his sweatpants. § 87(2)(b) stated that PO Guido did not grab § 87(2)(b)'s genitals. Afterwards, PO Guido patted the back of § 87(2)(b)'s thighs over his sweatpants. PO Guido's hands made brief contact with the area of § 87(2)(b)'s buttocks. PO Guido grabbed § 87(2)(b)'s waistband and then escorted him to the side of a patrol vehicle. PO Guido instructed § 87(2)(b) to spread his legs apart. PO Guido patted § 87(2)(b)'s leg from top to bottom, checked his ankles, and pulled on his sweatpants drawstring.

PO Guido stated (**BR2**) that he was the only officer who frisked and searched § 87(2)(b). PO Guido patted § 87(2)(b)'s back, torso, arms, legs, and rear. PO Guido did not feel nor observed any L-shaped bulges on § 87(2)(b)'s person. At this time, a crowd began to congregate around the officers and § 87(2)(b). PO Guido, PO Zinali and PO Gerez escorted § 87(2)(b) to the side of the patrol vehicle for safety. PO Guido patted up and down § 87(2)(b)'s arms and legs. PO Guido instructed

§ 87(2)(b) to widen his stance and he complied. PO Guido felt items inside of § 87(2)(b)'s sweatpants pockets and removed the items within. PO Guido did not recall what the items were. During PO Guido's CCRB interview, he was provided that § 87(2)(b) alleged that he touched his genitals over his sweatpants when he frisked him on the street. PO Guido stated that from his experience as a police officer, he knew that the waistband area, around the genital region is where individuals tend to conceal firearms. PO Guido admitted that he frisked § 87(2)(b)'s waistband, an area closed to the genitals. During PO Guido's CCRB interview, he was provided that § 87(2)(b) alleged that he made physical contact with his buttocks over his sweatpants. PO Guido stated that due to the serious nature of the information known to the CCRB, he made brief contact with the area around § 87(2)(b)'s buttocks when he frisked § 87(2)(b)'s waistband and legs for weapons. PO Guido did not find any weapons on § 87(2)(b)'s person. PO Guido stated that he did not place his hands inside § 87(2)(b)'s sweatpants at any time.

LT Bletcher stated (**BR4**) that upon arrival, he did not observe any bulges or had any indication that § 87(2)(b) was armed with a firearm. PO Guido, PO Gerez, and PO Zinali exited the patrol vehicle and approached § 87(2)(b). LT Bletcher observed PO Guido searching § 87(2)(b)'s waistband area. LT Bletcher did not instruct the officers to conduct a search on § 87(2)(b). There were no weapons found on § 87(2)(b).

PO Zinali (**BR3**) stated after § 87(2)(b) was placed in handcuffs, he held § 87(2)(b)'s left arm. At this time, PO Guido searched him. PO Zinali stated that it was standard police procedure to hold § 87(2)(b)'s arms while he was searched. Neither PO Zinali nor PO Gerez searched § 87(2)(b). PO Zinali did not know why PO Guido searched § 87(2)(b). LT Bletcher was in the vicinity of the location; however, PO Zinali did not know exactly where he was. At this time, additional officers arrived in their patrol vehicle to the location. PO Guido removed a set of keys from § 87(2)(b)'s right sweatpants pocket and handed it to PO Zinali. PO Zinali did not know whether additional items were removed from § 87(2)(b)'s person. PO Zinali and PO Guido escorted § 87(2)(b) to a patrol vehicle in front of the grocery store and placed him inside. PO Zinali did not know if PO Guido searched other areas on § 87(2)(b)'s person because he was focused on making sure that no one approached or attacked him and the officers.

According to PO Guido's BWC video (**BR6**), at timestamp 1:27, PO Gerez squeezes § 87(2)(b)'s sweater front pocket. At timestamp 1:29, PO Guido pats his right hand over § 87(2)(b)'s sweater front pocket, and then lowers his right hand to the waist level, and runs it along the front side of § 87(2)(b)'s waistband. At timestamp 1:32, PO Guido pats down the front of § 87(2)(b)'s right thigh and squeezes his front pant pocket. At timestamp 1:34, PO Guido runs his right hand along the back of § 87(2)(b)'s waistband. PO Guido pats down the lower portion of the back of § 87(2)(b)'s right leg. At timestamp 1:43, PO Guido pats the front of § 87(2)(b)'s sweater. At timestamp 1:47, PO Guido pats the back and front side of § 87(2)(b)'s right leg and then does the same to the left leg. At timestamp 1:50, PO Guido appears to place his hands in the space between § 87(2)(b)'s legs over his sweatpants and pats his inner left thighs. PO Guido's BWC video is partially obstructed by the officers' uniform and does not capture exactly where PO Guido touches. At timestamp 1:52, PO Guido pats the front side of § 87(2)(b)'s waist. At timestamp 2:03, PO Guido says, "Who's got a cage?", and he and PO Zinali escort § 87(2)(b) to the side of a police vehicle in front of the location. PO Guido stands on § 87(2)(b)'s right side, and PO Zinali is on § 87(2)(b)'s left side. At timestamp 2:34, PO Guido asks § 87(2)(b) if he had anything that will poke or hurt him. § 87(2)(b) tells him no. At timestamp 2:41, PO Guido reaches inside § 87(2)(b)'s front sweater pocket and removes a set of keys. At timestamp 2:46, PO Guido reaches inside § 87(2)(b)'s right sweatpants pocket and removes his cellphone. PO Guido gives § 87(2)(b)'s cellphone to PO Zinali. At timestamp 2:50, PO Guido pats the front side of § 87(2)(b)'s thighs. At timestamp 2:57, PO Guido pats § 87(2)(b)'s left leg. At timestamp 3:00, PO Guido instructs § 87(2)(b) to widen his stance and

he complies. At timestamp 3:03, PO Guido runs both of his hands from the top of § 87(2)(b)'s right leg to his ankle and then does the same thing to the left leg. At timestamp 3:24, PO Guido instructs § 87(2)(b) to sit inside the back seat of the patrol vehicle. § 87(2)(b) complies.

According to PO Zinali's BWC video (**BR8**), at timestamp 2:45, which captures footage immediately after PO Guido removes § 87(2)(b)'s set of keys, PO Guido hands the aforementioned keys to PO Zinali. PO Zinali removed a purple object from § 87(2)(b)'s left pant pocket, and PO Guido hands PO Zinali § 87(2)(b)'s cellphone.

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PO Guido resigned from the NYPD on April 4, 2023. Therefore, it is recommended that **Allegation B** be closed as *miscellaneous – subject resigned*.

**Allegation (C) Abuse of Authority: Police Officer Edgard Guido detained § 87(2)(b)**

§ 87(2)(b) stated (**BR1**) that he sat inside the police vehicle for approximately one hour and in that time, he observed officers go into the grocery store and the surrounding businesses. PO Guido told § 87(2)(b) that he will explain everything to him when he returned. PO Zinali guarded the vehicle. When the officers returned, § 87(2)(b) was released.

All of the officers interviewed (**BR2-4**) stated that after § 87(2)(b) was searched, he was placed inside a patrol vehicle while officers conducted their investigation regarding the information known to the CCRB. PO Guido stated that § 87(2)(b) was detained during the investigation due to the serious nature of the information. After § 87(2)(b) was placed in handcuffs, a crowd gathered around the officers and § 87(2)(b). PO Guido escorted § 87(2)(b) inside the patrol vehicle for safety reasons. PO Guido and other officers from the 32<sup>nd</sup> Precinct entered businesses next to the location and requested to watch surveillance footage from the staff. The staff showed PO Guido the footage captured. PO Guido stated when he watched the video, he observed § 87(2)(b) walk near a vehicle parked on the street next to the incident location. PO Guido looked under the vehicle and did not find any firearm or weapons. Officers escorted § 87(2)(b) out of the patrol vehicle, removed his handcuffs and he was released.

According to PO Guido's BWC video (**BR6**), at timestamp 3:43, PO Guido tells § 87(2)(b) that he is being detained and that he is not under arrest. At timestamp 4:02, PO Guido tells bystanders that § 87(2)(b) is being detained while officers investigate the incident. At timestamp 6:00, PO Guido looks under a parked vehicle. At timestamp 9:35, PO Guido attempts to remove the battery from § 87(2)(b)'s electric bicycle. From timestamp 10:50 until 33:48, PO Guido and officers enter the business next to 423 Lenox Avenue to watch security footage. The officers exit each store with no results. At timestamp 34:09, officers escort § 87(2)(b) out of the patrol vehicle and PO Zinali removes § 87(2)(b)'s handcuffs.

According to PO Gerez's BWC video (**BR7**), at timestamp 17:49, PO Gerez enters an apartment building. At timestamp 18:48, PO Gerez searches through the trash inside the building. At timestamp 35:37, PO Gerez offers § 87(2)(b) his business card. § 87(2)(b) does not accept PO Gerez's offer.

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PO Guido resigned from the NYPD on April 4, 2023. Therefore, it is recommended that **Allegation C** be closed as *miscellaneous – subject resigned*.

### Civilian and Officer CCRB Histories

This is the first CCRB complaint to which § 87(2)(b) has been a party (BR11).

- LT Bletcher has been a member of service for twenty years and has been a subject in twelve other CCRB complaints and twenty-six other allegations, of which five were substantiated.
  - [201608992] involved substantiated allegations of stop and refusal to provide name and shield number against LT Bletcher. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
  - [201910059] involved substantiated allegations of failure to provide RTKA Card, discourteous word against LT Bletcher. The Board recommended Command Discipline A and the NYPD imposed Command Discipline B.
  - [202007247] involved substantiated allegation of refusal to provide against LT Bletcher. The Board recommended Command Discipline A and the NYPD imposed no disciplinary action.
  - § 87(2)(g)

### Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 21, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Squad: 15

|               |              |                    |            |
|---------------|--------------|--------------------|------------|
| Investigator: | Jeffrey Tsui | INV Jeffrey Tsui   | 05/15/2023 |
|               | Signature    | Print Title & Name | Date       |

|               |                                                                                     |                    |          |
|---------------|-------------------------------------------------------------------------------------|--------------------|----------|
| Squad Leader: |  | IM Simon Wang      | 05/16/23 |
|               | Signature                                                                           | Print Title & Name | Date     |

|           |           |                    |      |
|-----------|-----------|--------------------|------|
| Reviewer: |           |                    |      |
|           | Signature | Print Title & Name | Date |